

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331(1) of the Code of Criminal
Procedure Act No.15 of 1979 read with
Article 138 of the Constitution of the
Democratic Socialist Republic of Sri
Lanka.

Court of Appeal No:
CA/HCC/0007/2020
High Court of Puttalam
Case No: HC/50/2018

Welgamage Nevil Marcus

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.**
R.P.Hettiarachchi, J.

COUNSEL : **Tenny Fernando with Pasindu Gamage
for the Appellant.
Anoopa De Silva, DSG for the Respondent.**

ARGUED ON : **23/06/2026**

DECIDED ON : **28/08/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Accused-Appellant (hereinafter referred to as the Appellant) was indicted by the Attorney General in the High Court of Puttalam for committing three counts of incest on his daughter namely Welgamage Tharushi Madhushika between 01/09/2015 to 07/03/2016 an offence punishable under Section 364(3) of the Penal Code as amended.

After the trial the Appellant was convicted for the first count and he was sentenced to 16 years rigorous imprisonment with a fine of Rs.25,000/-. In default of which 12 months simple imprisonment was imposed. The Appellant was acquitted from the second and third counts.

Being aggrieved by the aforesaid conviction and sentence, the Appellant preferred this appeal to this court. The Learned Counsel for the Appellant informed this court that the Appellant has given consent to argue this matter in his absence. Also, at the time of argument the Appellant was connected via the Zoom platform from prison.

The Counsel for the Appellant placed the following grounds of appeal for adjudication:

1. The Learned High Court Judge misled himself in law and facts and failed to consider that the prosecutrix did not elicit substantive or cogent evidence regarding sexual intercourse which is an essential item of evidence in a rape case.
2. That the Learned High Court Judge had failed to evaluate the material inconsistencies between the testimony of the prosecutrix and other witnesses which affect the root of the prosecution case.
3. The Learned High Court Judge failed to consider the defence evidence in its correct perspective.

PW1, the prosecutrix who encountered this unpleasant incident was almost 12 years old, was schooling and was in grade seven. The Appellant is her biological father.

On the day of the first incident, when she was sleeping, she suddenly got up feeling heaviness on her body. At the same time, she had felt pain in her vagina. At that time, she had seen that her father (Appellant) was on her body. She had consistently said that her father was on her body when she had felt pain in her vagina. Also, she had noted that her dress had been removed.

The learned Counsel for the Appellant strenuously argued that the victim had not testify on sexual penetration which is an essential element to prove a case of rape. In this case, the victim did not say that she had felt the penis entering her vagina. Instead, she had said that she had felt pain in her

vagina. I consider this information to be enough to justify an arrest and the filing of formal rape charges.

The doctor in his evidence stated that the victim in her history had said that the Appellant used to sexually harass her. She had informed this to her class teacher. The Appellant was arrested after lodging a formal complaint to the police.

According to the JMO, a partially healed tear was found at the 6' O'clock position of the hymen. The JMO opined that according to the medical evidence, repeated vaginal penetration had taken place in the past.

In criminal trials, the credibility of the evidence given by a rape victim would be extremely crucial; this would be due to such evidence being used to determine the conviction or acquittal of the accused, especially in situations where physical evidence would not be available. In such situations, elements such as the consistency in testimonies, post assault behaviour and other circumstantial evidence would be taken into consideration by the Court. A victim's testimony alone would be sufficient to convict, only where such testimony is free from "inconsistencies" or deviations from usual behaviours. As such, any testimony given by the victim would be thoroughly analysed to detect such contradictions or discrepancies which would affect the case.

In sexual assault cases, the pertinent elements which would establish credibility include personal characteristics such as whether the victim is genuine and trustworthy. This would be considered by assessing the victim's demeanour, one example would be the victim's calm nature during trial, where he would not be argumentative towards the defence. In such situations, the victim's memory and communication skills would be of utmost importance, due to the victim being required to recall and relate what happened. Further, credibility can also be ascertained by the assessment of consistency in the statements given by the victim at different points in time

of the trial, between the victim's and witnesses' statements and in the post assault behaviour of the victim.

In the case of **Deepak Kumar Sahu Versus State of Chhattisgarh** 2025 INSC 929 it was held:

“This Court observed that if the evidence of the victim does not suffer from any basic infirmities and the factor of probability does not render it unworthy evidence, the conviction could base solely on the evidence of the prosecutrix. It was further observed that as a general rule there is no reason to insist on the corroboration except in certain cases, it was stated. The medical evidence may not be available in which circumstance, solitary testimony of the prosecutrix could be sufficient to base the conviction.”

In the case of **Keshav v. State of Maharashtra** (2025 INSC 604) it was held that:

“The Court should be equally careful in protecting the accused from a false implication. While applying the broad principle that an injured witness, whose presence cannot be doubted, as she would ordinarily not lie, still there is no presumption or any basis for assuming that the statement of such a witness is always correct or without any embellishments.”

In the case of **Ajith v. Attorney-General**, (2009) 1 SLR 23 it was held:

“If the prosecutrix in a rape case is not a reliable or believable witness, the evidence seeking to corroborate her story cannot strengthen her evidence. Court should seek corroborative evidence only if the prosecutrix is a reliable witness.”

In the case of **State of Himachal Pradesh v. Manga Singh** (2019) 16 SCC 759 it was held:

“The conviction can be sustained on the sole testimony of the prosecutrix, if it inspires confidence. The conviction can be based solely on the solitary evidence of the prosecutrix and no corroboration be required unless there are compelling reasons which necessitate the courts to insist for corroboration of her statement. Corroboration of the testimony of the prosecutrix is not a requirement of law; but a guidance of prudence under the given facts and circumstances. Minor contractions or small discrepancies should not be a ground for throwing the evidence of the prosecutrix. (12) It is well settled by a catena of decisions of the Supreme Court that corroboration is not a sine qua non for conviction in a rape case. If the evidence of the victim does not suffer from any basic infirmity and the ‘probabilities factor’ does not render it unworthy of credence. As a general rule, there is no reason to insist on corroboration except from medical evidence. However, having regard to the circumstances of the case, medical evidence may not be available. In such cases, solitary testimony of the prosecutrix would be sufficient to base the conviction, if it inspires the confidence of the court.”

In this case the victim had said what she had seen and felt when her father was on her body. In respect of this point, I am of the belief that the victim had not lied or fabricated a story against her father, rather she had merely proceeded to recall and state the facts according to her comprehension at that time, as a child below the age of 16.

In this case, the prosecutrix was consistent in her evidence about the happenings of the incident. She had vividly explained how she was raped by the Appellant on that fateful day. She had given evidence before the High Court over three years after the incident.

Further, the evidence of the JMO, which clearly notes that evidence of vaginal and anal penetration was present, along with the partially healed tear as considered above, further strengthens the prosecution's case.

The Learned High Court Judge has sufficiently given due consideration to the infirmities in the evidence of PW1 and therefore, I conclude that the Learned High Court Judge had not erred in law in evaluating her evidence under the accepted principles.

The Learned High Court Judge had considered the defence evidence at length in his judgment. Therefore, it is incorrect to say that the Learned High Court Judge had not correctly considered the defence evidence in the judgment.

The Learned High Court Judge in the judgment had considered all the evidence adduced by the prosecution and the defence and had given reasons as to why he acted on the evidence adduced by the prosecution. He has accurately analysed all the evidence presented by both parties with a correct perspective and had arrived at the correct finding.

In this case the Appellant is the biological father of the victim. He is a father of three children including the victim. The defence had made mitigating submissions highlighting the family situation of the Appellant.

Under Section 364(3) of the Penal Code, the minimum sentence is 15 years and the maximum sentence is 20 years. The minimum sentence is mandatory. As such, the sentence should start from 15 years and goes up to 20 years.

In this case the Learned High Court Judge had imposed a sentence of 16 years on the first count. Considering all the circumstances of the case, I deduct one year from the 16 years sentence imposed bringing the prison sentence to 15 years rigorous imprisonment.

The fine and default sentence imposed will remain same.

I further order the sentence imposed to be operative from the date of conviction namely 21/01/2020.

The appeal is, therefore, dismissed subject to the above variation of the sentence.

The Registrar of this Court is directed to send this judgment to the High Court of Puttalam along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J

I agree.

JUDGE OF THE COURT OF APPEAL